

Plaintiff's motion for summary adjudication is **denied**.

Evidentiary Objections

Neither party made any evidentiary objections.

9. 9:00 AM CASE NUMBER: C25-00514

CASE NAME: ARACELI CALDERON VS. MARIE VALENCIA

*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: VREJ V. GARABEDIAN

FILED BY: VALENCIA, ENRIQUE

TENTATIVE RULING:

Defendants' former counsel, Vrej Garabeian's Motion to be Relieved as Counsel for Defendants Enrique and Marie Valencia, filed on September 10, 2025, is **moot**. A Substitution of Attorney form was filed on September 22, 2025, wherein Defendants agreed to become self-represented litigants. No appearance is required at the hearing on January 7, 2026.

10. 9:00 AM CASE NUMBER: C25-00842

CASE NAME: CHRIS CARVALHO VS. POWIS PARKER, INC.

HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT

FILED BY: POWIS PARKER, INC.

TENTATIVE RULING:

Before the Court is a demurrer to Plaintiff's first amended complaint. For the reasons set forth, the demurrer is **sustained**, and the case is **dismissed without prejudice**.

Background

Plaintiff alleges he is the assignee for collection of claims of the law firm Gagen, McCoy, McMahon, Koss, Markowitz & Fanucci, a professional corporation ("Assignor") against defendant Powis Parker, Inc. (First Am. Compl. ("FAC") ¶¶ 1, 2.) Plaintiff alleges Powis owes approximately \$62,000 for legal services rendered by the Assignor. Plaintiff asserts four common counts for recovery of the fees in the FAC.

Legal Standards for Ruling on A Demurrer

In ruling on a demurrer, the Court must accept as true all well-pled factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) In determining whether the complaint states a claim for relief, the Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) The Court also considers matters of which the Court can properly take judicial notice. (*Carloss, supra*, 242 Cal.App.4th at 123; *Evans, supra*, 38 Cal.4th at 6.)

Kane Declaration, Request for Judicial Notice, and Plaintiff's Evidentiary Objections Thereto

Plaintiff objects to the Kane Declaration and Defendant's asking the Court to take judicial notice of the exhibits attached to the Kane Declaration in support of the demurrer. The notice of the demurrer